

STATE OF NEW YORK

2667--A

2025-2026 Regular Sessions

IN SENATE

January 22, 2025

Introduced by Sens. SALAZAR, HARCKHAM, HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Crime Victims, Crime and Correction -- recommitted to the Committee on Crime Victims, Crime and Correction in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law and the executive law, in relation to prohibiting the use of restraints on incarcerated individuals during labor, absent extraordinary circumstances, and on pregnant persons during a custodial interrogation

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 1 of section 611 of the correction law, as amended by chapter 17 of the laws of 2016, paragraph (c) as separately amended by chapters 322 and 621 of the laws of 2021, is amended to read as follows:

1. (a) If a ~~woman~~ person confined in any institution or local correctional facility ~~be~~ is pregnant and about to give birth ~~to a child~~, or needs medical care elsewhere related to pregnancy or any pregnancy outcome, including birth, abortion, miscarriage and still-birth, the superintendent or sheriff in charge of such institution or facility, a reasonable time before the anticipated birth ~~of such child~~ or need for such other care, as determined by such person's health care provider, or if unavailable, by personnel providing medical services to such person, in accordance with medical best practices and standards of care, shall cause such ~~woman~~ person to be removed from such institution or facility and provided with comfortable accommodations, maintenance and medical care elsewhere⁷. This shall be done under such supervision and safeguards to prevent ~~her~~ their escape from custody as the superintendent or sheriff or ~~his or her~~ their designee may determine except as provided by paragraphs (b), (c), (d), (g), and (h) of this subdivision.

(b) No restraints of any kind shall be used during transport of such ~~woman~~ person, a ~~woman~~ person who is known to be pregnant or known to

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 be within twelve weeks of any pregnancy outcome, including birth,
2 abortion, miscarriage, and stillbirth, by correctional personnel or
3 personnel providing medical services to the institution or local correc-
4 tional facility[~~, or a woman within eight weeks after delivery or preg-~~
5 ~~nancy outcome,~~]. This includes, but is not limited to, persons receiv-
6 ing care at a hospital or medical facility or in labor or delivery, and
7 is absent extraordinary circumstances in which[+]

8 ~~i. the superintendent or sheriff or his or her designee in consulta-~~
9 ~~tion with the medical professional responsible for the institution has~~
10 ~~made an individualized determination that restraints are necessary to~~
11 ~~prevent such woman from injuring herself or medical or correctional~~
12 ~~personnel or others and cannot reasonably be restrained by other means,~~
13 ~~including the use of additional personnel; or~~

14 ii.], during transport the correctional personnel directly responsible
15 for the transport of such a [woman] person determine that an emergency
16 has arisen in which restraints are necessary because the [woman] person
17 poses an immediate risk of serious injury to [herself] themselves or
18 medical or correctional personnel or others and cannot reasonably be
19 restrained by other means.

20 [(b)] (c) If a determination has been made pursuant to [~~subparagraph i~~
21 ~~or ii of~~] paragraph [(a)] (b) of this subdivision that extraordinary
22 circumstances exist then restraints shall be limited to wrist restraints
23 in front of the body. The [~~superintendent or sheriff or his or her~~
24 ~~designee pursuant to subparagraph i of paragraph (a) of this subdivision~~
25 ~~or~~] correctional personnel pursuant to [~~subparagraph ii of~~] paragraph
26 [(a)] (b) of this subdivision shall document in writing the facts upon
27 which the finding of extraordinary circumstances were based within five
28 days of the use of such restraints and shall also document the type of
29 restraints used and the length of time such restraints were used.

30 [~~(c) No restraints of any kind shall be used when such woman is in~~
31 ~~labor, admitted to a hospital, institution or clinic for delivery, or~~
32 ~~recovering after giving birth. Any such personnel as may be necessary to~~
33 ~~supervise the woman during transport to and from and during her stay at~~
34 ~~the hospital, institution or clinic shall be provided to ensure adequate~~
35 ~~care, custody and control of the woman, except that no]~~

36 (d) No correctional staff shall be present in the [delivery] patient's
37 room during [~~the birth of a baby~~] counseling and medical care related to
38 the pregnancy and all pregnancy outcomes including birth, abortion,
39 miscarriage, and stillbirth and during and after labor unless requested
40 by the medical staff [~~supervising~~] providing such [delivery] care when
41 the situation poses a clear risk of danger to the medical staff or
42 others or by the [~~woman giving birth~~] person receiving such care. If a
43 determination has been made pursuant to this subdivision that correc-
44 tional staff shall be present, correctional personnel shall document in
45 writing within five days: the facts, as reported by medical staff, on
46 which the determination was based; the nature of the care being
47 provided; and what, if any, alternatives were attempted to avoid having
48 correctional staff present and why they failed.

49 (e) The [woman] person shall be permitted to have at least one support
50 person of [her] their choosing accompany [~~her in the delivery room and~~
51 ~~when such woman is in labor and recovering after giving birth]~~ them to a
52 hospital or medical facility for labor, birth, postpartum recovery and
53 counseling and medical care related to pregnancy and all pregnancy
54 outcomes including birth, abortion, miscarriage and stillbirth and shall
55 be permitted to remain with such support person for the duration of
56 their stay in the hospital or medical facility subject to the visitation

1 rules of that hospital or medical facility. A support person shall not
2 need to have visited the [woman] person at a correctional facility prior
3 to serving as a support person [~~-, A person~~] and may not be denied eligi-
4 bility to serve as a support person solely on the basis of a past criminal
5 conviction or that such support person is on probation, conditional
6 release, parole or post release supervision. Any decision by an [agency]
7 institution or local correctional facility to deny a [woman's] request
8 [~~to have~~] for a specific support person [~~serve as a support person~~]
9 shall be made with reasons specified in writing within five days of
10 [her] the request and promptly provided to the [woman] person making
11 the request. A support person shall be notified immediately after such
12 [woman] person goes into labor, [~~or immediately after a caesarean~~] is
13 scheduled for labor induction or a cesarean section [~~or termination~~], is
14 identified as having a miscarriage or stillbirth, or is scheduled for
15 medical care for any pregnancy outcome, including birth, abortion,
16 miscarriage, and stillbirth. If available, a doula [~~, midwife~~] or other
17 birthing support specialist may also assist during labor [~~and~~], delivery
18 [~~in addition to at least one support person of the woman's choosing. Any~~
19 ~~woman confined in a state or local correctional facility shall receive~~
20 ~~notice in writing in a language and manner understandable to her about~~
21 ~~the requirements of this section upon her admission to such state or~~
22 ~~local correctional facility and again when she is known to be pregnant.~~
23 ~~The superintendent or sheriff shall publish notice of the requirements~~
24 ~~of this section in prominent locations where medical care is provided~~],
25 postpartum recovery, and during medical care for and recovery from any
26 pregnancy outcome including birth, abortion, miscarriage, and
27 stillbirth. The superintendent or sheriff or [~~his or her~~] their designee
28 shall cause such [woman] person to be subject to return to such institu-
29 tion or local correctional facility [~~as soon~~] after the birth of [~~her~~]
30 their child or other pregnancy outcome or provision of counseling and
31 medical care related to pregnancy or any pregnancy outcome as the state
32 of [~~her~~] their health will permit as determined by the medical profes-
33 sional responsible for the care of such [woman] person. [~~If such woman~~
34 ~~is confined in a local correctional facility, the expense of such accom-~~
35 ~~modation, maintenance and medical care shall be paid by such woman or~~
36 ~~her relatives or from any available funds of the local correctional~~
37 ~~facility and if not available from such sources, shall be a charge upon~~
38 ~~the county, city or town in which is located the court from which such~~
39 ~~incarcerated individual was committed to such local correctional facili-~~
40 ~~ty. If such woman is confined in any institution under the control of~~
41 ~~the department, the expense of such accommodation, maintenance and~~
42 ~~medical care shall be paid by such woman or her relatives and if not~~
43 ~~available from such sources, such maintenance and medical care shall be~~
44 ~~paid by the state. In cases where payment of such accommodations, main-~~
45 ~~tenance and medical care is assumed by the county, city or town from~~
46 ~~which such incarcerated individual was committed the payor shall make~~
47 ~~payment by issuing payment instrument in favor of the agency or individ-~~
48 ~~ual that provided such accommodations and services, after certification~~
49 ~~has been made by the head of the institution to which the incarcerated~~
50 ~~individual was legally confined, that the charges for such accommo-~~
51 ~~dations, maintenance and medical care were necessary and are just, and~~
52 ~~that the institution has no available funds for such purpose.~~
53 (d) (f) Any [woman] person confined in an institution or local
54 correctional facility shall receive notice in writing in a language and
55 manner understandable to [~~her~~] them about the requirements of this
56 section upon [~~her~~] their admission to an institution or local correc-

1 tional facility and again when [~~she is~~] they are known to be pregnant.
2 The superintendent or sheriff shall publish notice of the requirements
3 of this section in prominent locations where medical care is provided.
4 The department and the sheriff shall provide annual training on
5 provisions of this section to all correctional personnel who are
6 involved in the transportation, supervision or medical care of incarcer-
7 ated [~~women~~] persons.

8 [~~(e)~~] (g) Force against a pregnant person or any person within twelve
9 weeks after delivery or pregnancy outcome shall not be used, except as a
10 last resort, and then only in situations in which the staff member
11 reasonably believes that force is necessary to protect themselves, the
12 incarcerated individual, or a third person from what they reasonably
13 believe to be the use or imminent use of physical force by such individ-
14 ual that could cause death or serious physical injury. The use of spit
15 masks, chemical agents, tasers, weapons, chokeholds or blows to the body
16 against a pregnant person or any person within twelve weeks after deliv-
17 ery or pregnancy outcome shall be strictly prohibited.

18 (h) If a determination has been made pursuant to paragraph (g) of this
19 subdivision that force must be used, correctional personnel shall docu-
20 ment in writing within five days of the use of such force: the facts
21 from which the finding that force was necessary as a last resort were
22 based, what non-force alternatives were attempted and why they failed,
23 the type or types of force used, the length of time such force was used,
24 and a description of each injury incurred by the incarcerated person.

25 (i) i. The department shall report annually to the governor, the
26 temporary president of the senate, the minority leader of the senate,
27 the speaker of the assembly, the minority leader of the assembly, the
28 chairperson of the senate crime victims, crime and correction committee
29 and the chairperson of the assembly correction committee concerning:

30 (A) every use of restraints and force on a [woman] person under this
31 section, including the reason such restraint was used, the type of
32 restraint used and the length of time such restraint was used pursuant
33 to paragraph [~~(b)~~] (c) of this subdivision, but shall exclude [individ-
34 ual identifying] personally identifiable information; and

35 (B) every use of force on a person under this section, including the
36 reason such force was used, what non-force alternatives were attempted
37 and why they failed, the type or types of force used, the length of time
38 such force was used, and a description of each injury incurred by the
39 incarcerated person pursuant to paragraph (h) of this subdivision, but
40 shall exclude personally identifiable information.

41 ii. The sheriff of each county shall report at least annually to the
42 commission, in a form and manner prescribed by the commission[~~r~~]:

43 (A) every use of restraints on a [woman] person under this section,
44 including the reason such restraint was used, the type of restraint used
45 and the length of time such restraint was used pursuant to paragraph
46 [~~(b)~~] (c) of this subdivision, [~~annually to the commission~~] but shall
47 exclude personally identifiable information; and

48 (B) every use of force on a person under this section, including the
49 reason such force was used, what non-force alternatives were attempted
50 and why they failed, the type or types of force used, the length of time
51 such force was used, and a description of each injury incurred by the
52 incarcerated person pursuant to paragraph (h) of this subdivision, but
53 shall exclude personally identifiable information. The commission shall
54 include such information in its annual report pursuant to section
55 forty-five of this chapter, but shall exclude identifying information
56 from such report.

1 iii. Reports required by this section shall be posted on the websites
2 maintained by the department and the commission.

3 (j) The department and the commission shall issue uniform minimum
4 standards and procedures regarding the implementation of this subdivi-
5 sion within one hundred eighty days of the effective date of the chapter
6 of the laws of two thousand twenty-five that amended this subdivision.
7 These standards shall be developed in consultation with medical, social
8 work, and mental health professionals, including those with specializa-
9 tions in reproductive health care, pediatrics, child development, and
10 postpartum mental health, as well as advocates for pregnant people who
11 are incarcerated, including presently and formerly incarcerated individ-
12 uals.

13 § 2. The executive law is amended by adding a new section 837-tt to
14 read as follows:

15 § 837-tt. Use of restraints on pregnant and post-pregnant persons by
16 law enforcement. 1. Where a person who is known to be pregnant, in
17 labor or delivery, or twelve weeks post-pregnancy is in the custody of
18 law enforcement, subject to custodial interrogation, or has their free-
19 dom of action restricted by law enforcement in any significant way, the
20 use of restraints of any kind by law enforcement personnel shall be
21 prohibited. The provisions of this section shall at minimum apply to
22 police stations, holding facilities for prisoners, prosecutors' offices,
23 medical areas and hospitals, and any facility where persons are held in
24 detention in connection with criminal or juvenile delinquency charges
25 that have been or may be filed against them, as well as during transfer
26 to and from such locations. A person's disclosure of their status shall
27 serve as sufficient notice to law enforcement under this provision.

28 2. (a) If restraints are used on a person who is pregnant or post-
29 pregnancy contrary to this section, the law enforcement personnel
30 responsible for such use of restraints shall document in writing within
31 five days: the reason such restraints were used, the type of restraints
32 used, and the length of time such restraints were used.

33 (b) The chief of every police department, county sheriff, and the
34 superintendent of state police shall report to the division, in a form
35 and manner prescribed by the division, all such uses of restraints,
36 disaggregated by county, and shall include the following information,
37 but shall exclude personally identifiable information:

38 (i) the reason restraints were used;
39 (ii) the type of restraints used;
40 (iii) the length of time such restraints were used;
41 (iv) the race, ethnicity, age, and gender identity of the individual;
42 and
43 (v) the zip code or location where the use of restraints occurred.

44 (c) The division shall make the information reported pursuant to this
45 subdivision available to the public by posting it on the website of the
46 division, excluding personally identifiable information.

47 (d) The division shall submit to the governor and the legislature an
48 annual report of all uses of restraints on pregnant and post-pregnant
49 persons by law enforcement, including the information reported pursuant
50 to this subdivision, but shall exclude personally identifying informa-
51 tion.

52 (e) The division may promulgate regulations to effectuate the report-
53 ing required by this subdivision.

54 § 3. This act shall take effect immediately.